

Iqbal Ahmad v. State of U.P.

Allahabad High Court · Division Bench · 28 March 2017 · WRIT - C No. 12944 of 2017 · **Writ disposed; petitioner left to invoke Clause 6.14.**

HEADNOTE

A writ confined to depositing electricity bills in instalments was disposed by relegating the consumer to Clause 6.14 of the Electricity Supply Code as the alternative remedy.

FACTUAL SUMMARY

Iqbal Ahmad filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and others, including the respondent Power Corporation. At the hearing, counsel confined the prayer to a direction that amounts due under bills raised by the Power Corporation be permitted to be deposited in instalments. The Division Bench did not examine the bills on merits or the petitioner's circumstances.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

A consumer seeking to deposit electricity bills in instalments must invoke Clause 6.14 of the Electricity Supply Code; a writ confined to that prayer is disposed by leaving the petitioner to that alternative remedy. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ seeking instalment deposit of Power Corporation bills was closed because Clause 6.14 is the Code remedy for that facility. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLS AND ENTITLEMENT TO INSTALMENTS UNDER CLAUSE 6.14

Petition disposed without examining the bills; petitioner left to invoke Clause 6.14. ¶ 1